

Sanjay Kumar v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · WRIT-C No. 6974 of 2022 · **Writ disposed without opinion on merits; liberty to file a Para 6.8 objection within four weeks, to be decided after hearing within four further weeks; coercive action stayed for eight weeks or until disposal, whichever is earlier.**

HEADNOTE

Writ against a recovery certificate of Rs.2,36,772 dated 25.10.2021 disposed of without any opinion on merits. The consumer was given liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks. If filed in time, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. No coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Sanjay Kumar petitioned the Allahabad High Court against the State of Uttar Pradesh and the distribution licensee. He asked the Court to quash a recovery certificate dated 25 October 2021 for Rs.2,36,772 issued by respondent no. 5, to restrain realisation of that sum, and to direct an enquiry and punishment of the officers who had acted illegally. Counsel for the licensee stated on instructions that the petitioner could object to the demand and that the objection would be decided in accordance with law in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to a demand under Para 6.8

HOLDING

A writ challenging a recovery certificate is disposed of without any opinion on merits by giving the consumer liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, together with a certified copy of the order. If that objection is filed in time, respondent no. 3 must decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action may be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1-2

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The High Court declined to examine the recovery certificate and disposed of the writ on the licensee's statement, leaving the consumer to an objection under Para 6.8 to be decided after hearing within a fixed time, with coercive recovery stayed only until that objection is disposed of or eight weeks pass. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE DATED 25.10.2021 FOR RS.2,36,772 WAS LEGALLY SUSTAINABLE

The writ was disposed without any opinion on merits, leaving the demand to an objection under Para 6.8. ¶ 1-2

NOT DECIDED — PRAYER FOR AN ENQUIRY AND PUNISHMENT OF THE RESPONDENTS FOR THE ALLEGED ILLEGAL ACTION

No enquiry was directed; the petition was disposed only with liberty to object under Para 6.8. ¶ 1-2

